

AMF

Date: 5/19/24

CITY CONTRACT NO. 7239

**AMENDMENT NO. 1 TO PROFESSIONAL SERVICES AGREEMENT
BETWEEN THE CITY OF CHEYENNE, ON BEHALF OF THE CHEYENNE
METROPOLITAN PLANNING ORGANIZATION, AND SUMMIT ENGINEERING
FOR THE EAST PARK GREENWAY UNDERPASS AND DRAINAGE PLAN**

1. Parties. The parties to this Amendment No. 1 are the City of Cheyenne, on behalf of the Cheyenne Metropolitan Planning Organization, hereinafter referred to as the “MPO,” and Summit Engineering, hereinafter referred to as the “Consultant.” The parties entered into a Professional Services Agreement originally dated September 28, 2020.
2. Purpose of Amendment. The work for the East Park Greenway Underpass and Drainage Plan has progressed as intended and on schedule, however, a desired project element has been identified as a critical addition to the success of this plan. This Amendment No. 1 will include additional professional services to complete a hydraulic modeling of the Union Pacific Railroad (UPRR) embankment, provide 35% grading design for the Laramie County Conservation District (LCCD), and develop a 35% Greenway plan and profile south of the UPRR.
3. Term. This Amendment No. 1 is effective upon approval and execution by the parties and shall remain in effect through the ending date of the underlying Professional Services Agreement.
4. Amendment. The parties agree that the Professional Services Agreement is amended to include the “Supplemental Task 1: Hydraulic Modeling Downstream of UPRR Embankment,” “Supplemental Task 2: 35% Grading Design for LEADS owned, Laramie County Conservation District (LCCD) Open Space,” and “Supplemental Task 3: 35% Greenway Plan and Profile,” attached hereto as Exhibit A and incorporated by reference.
5. Compensation. In consideration of the services to be performed pursuant to this Amendment No. 1, MPO shall pay the Consultant a “not-to-exceed” fee of \$20,040.00. The total contract amount shall not exceed \$88,070.00.
6. Force and Effect of Original Provisions. All other provisions of the original Professional Services Agreement remain unchanged and continue to have full force and effect for the term of the Professional Services Agreement.

7. Signatures. In witness thereof, the parties to the original Professional Services Agreement and to this Amendment No. 1, through their duly authorized representatives, have executed this Amendment No. 1 on the days and dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this Amendment No. 1.

MPO Policy Committee

By:

Date

Troy Thompson
MPO Policy Committee Chairman

City of Cheyenne for the MPO

By:

Date

Patrick Collins, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk

Consultant Firm

Summit Engineering
5907 Townsend Place
Cheyenne, WY 82009

By:

Date

Print Name: _____

EXHIBIT A



May 5, 2021

Jillian Harris
Sr. Transportation Planner
Cheyenne Metropolitan Planning Organization
615 West 20th Street
Cheyenne, WY 82001

RE: Proposal for Additional Services for East Park Greenway Underpass & Drainage Plan at the Union Pacific Railroad

Dear Ms. Harris:

The purpose of this letter is to outline the scope of work and fee proposal for additional services desired for the East Park Greenway Underpass & Drainage Plan at the Union Pacific Railroad.

SCOPE OF SERVICES

PART 1 Hydraulic Modeling Downstream of UPRR Embankment

GLM Design Group will provide Engineering Services for the hydraulic modeling downstream of the UPRR Embankment. This modelling will take into account the additional flow coming out of East Park from the proposed drainage culverts, as the proposed culverts will convey more storm water than the existing historic arch structure. The hydraulic and hydrologic analysis will also take into consideration the existing low spot on Campstool Road, west of the Dry Creek culverts, that currently serves as the spillway for high flows. This location will need to be included in the model and alternative solutions proposed to ensure that the amount of storm water that reaches Interstate-80 is no higher than existing flows. Modeling will be done using City of Cheyenne GIS contour data.

Fee \$11,040

PART 2 35% Preliminary Grading Plan for LEADS owned, Laramie County Conservation District Open Space (LCCD)

Provide Engineering Services for a 35% grading design of the LCCD open space to coincide with the results of the hydraulic and hydrologic modeling referenced as Part 1. Grading design will be done with consideration given to the LCCD Master Plan including wetland ponds and planned improvements to the site including the Black Hills Energy electric transmission lines and towers.

EXHIBIT A

Task includes meeting with LCCD and LEADS to review the proposed concept to ensure the design is addressing the vision of both parties. The grading design will be done using City of Cheyenne GIS contour data.

Deliverables:

- 35% Grading Plan
- Estimate of Probable Construction Costs

Fee \$5,000.00

PART 3 35% Greenway Plan and Profile

Provide Engineering Services for a 35% design, including plan and profile sheets for a Greenway from the UPRR arch structure, through the LCCD managed property, and connecting to the planned LEADS trail on Campstool Road. Greenway design will be done in concert with the grading design and the LCCD Master Plan. Design will include conceptual plans for any crossings of the Dry Creek drainage as necessary.

Task includes meeting with the LCCD and LEADS to review the proposed concept to ensure the design is addressing the vision of both parties. Task includes meeting with AVI to discuss their concept of the LEADS trail along Campstool Road. The grading design will be done using City of Cheyenne GIS contour data.

Deliverables:

- 35% Greenway Plan and Profile Drawings
- Estimate of Probable Construction Costs

Fee \$4,000.00

Total fee for additional scope of work: \$20,040.

Please let me know if you have any questions.

Sincerely,

Summit Engineering, LLC



Darci M. Hendon, PE
Project Manager
307-637-0681 (office phone)
307-421-5819 (cell phone)
Darci@SummitEngineeringWY.com

Approved as to
form only:

anf

Date: 9/8/20

City Contract # 7239

MPO Contract # 187455

**PROFESSIONAL SERVICES AGREEMENT
for the
East Park Greenway Underpass and Drainage Plan**

PREAMBLE

THIS AGREEMENT is made and entered into this 28th day of September, 2020, by and between the City of Cheyenne (City), Cheyenne Metropolitan Planning Organization, hereinafter referred to as the "MPO," and Summit Engineering, hereinafter referred to as "Consultant." The City of Cheyenne is acting as the agent of the MPO for the contract administration and as the MPO's Fiscal Manager in accordance with Contract #6111.

AGREEMENT

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference, and expressly made a part hereof.

2. **TIME OF PERFORMANCE**

The work included in this Scope of Work will be completed in accordance with the project schedule attached hereto as Exhibit B, incorporated by reference, and expressly made a part hereof. Any extensions of the time limit set forth in the Scope of Work shall be agreed upon in writing between the parties.

3. **CONSULTANT RESPONSIBILITY**

The Consultant shall be responsible for the professional quality, technical accuracy, timely completion of drawings and other services rendered by the Consultant and its sub-consultants and shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies, except to the extent that such errors, omissions, or other deficiencies arise from the digital data created by *Cheyenne/Laramie County Cooperative Geographic Information System (CLCCGIS)*.

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Consultant and by mutual agreement between the parties, the Consultant will, without additional compensation, correct those services not

9. **INSURANCE REQUIREMENTS**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement;
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement;
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period

satisfied its payment obligations to the Consultant. A portion of the payment may be held until any claims are resolved.

12. MPO REPRESENTATIVE

Prior to commencement of work, the MPO will designate in writing, an MPO Representative who shall make, within the scope of his/her authority, all necessary decisions regarding the project. All requests for contract interpretations, field orders, contract modifications, change orders, and other clarification or instruction shall be directed to the MPO Representative.

13. MONTHLY REPORT

With every monthly billing, Consultant shall provide the MPO Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.

14. INDEPENDENT CONSULTANT

The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the MPO or to incur any obligation of any kind on the behalf of the MPO.

15. TAXES

The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by in connection with its operations under this Agreement.

16. APPROVAL OF PLANS

The MPO's approval of drawings, designs, plans, specifications, reports, and incidental work or materials shall not in any way relieve the Consultant of responsibility for the technical accuracy of the work. The MPO's approval, acceptance of, or payment for any of the services shall not be construed to operate as a waiver of any of the MPO's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

17. DEFAULT

Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

18. REMEDIES

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

construed in favor of governmental or sovereign immunity. The State of Wyoming, WYDOT, the City of Cheyenne, Laramie County, and the MPO reserve all immunities and defenses available under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*

23. ENVIRONMENTAL POLICY ACTS

The Consultant agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules, or regulations.

24. HUMAN TRAFFICKING

As required by 22 U.S.C. § 7104(g) and 2 C.F.R. Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:

- a. Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
- b. Procures a commercial sex act during the period of time that the award is in effect; or
- c. Uses forced labor in the performance of the award or sub-awards under the award.

25. KICKBACKS

The Consultant certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the Consultant breaches or violates this warranty, Cheyenne MPO may, at its discretion, terminate this Agreement without liability to Cheyenne MPO, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

26. LIMITATIONS ON LOBBYING ACTIVITIES

By signing this Agreement, the Consultant certifies and agrees that, in accordance with Public Law 101-121, payments made from a federal grant shall not be utilized by the Consultant or its sub-consultants in connection with lobbying Congressmen, or any other federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.

27. MONITORING ACTIVITIES

The Cheyenne MPO shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

Administration (FTA). It is further agreed that the clause shall not be modified, except to identify the sub-consultant who will be subject to its provisions.

33. PROGRAM FRAUD AND FALSE OR FRAUDULENT STATEMENTS AND RELATED ACTS

- a. The Consultant acknowledges that the provisions of the Program Fraud Civil Remedies Act of 1986, as amended, 31 U.S.C. § 3801, *et seq.*, and U.S. DOT regulations, "Program Fraud Civil Remedies," 49 C.F.R. Part 31, apply to its actions pertaining to this Project. Upon execution of the underlying contract, the Consultant certifies or affirms the truthfulness and accuracy of any statement it has made, it makes, it may make, or causes to be made, pertaining to the underlying contract or the FTA assisted project for which this contract work is being performed. In addition to other penalties that may be applicable, the Consultant further acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification, the Federal Government reserves the right to impose the penalties of the Program Fraud Civil Remedies Act of 1986 on the Consultant to the extent the Federal Government deems appropriate.
- b. The Consultant also acknowledges that if it makes, or causes to be made, a false, fictitious, or fraudulent claim, statement, submission, or certification to the Federal Government under a contract connected with a project that is financed in whole or in part with Federal assistance originally awarded by FTA under the authority of 49 U.S.C. § 5307, the Government reserves the right to impose the penalties of 18 U.S.C. § 1001 and 49 U.S.C. § 5307(n)(1) on the Consultant, to the extent the Federal Government deems appropriate.
- c. The Consultant agrees to include the above two clauses in each sub-contract financed in whole or in part with Federal assistance provided by FTA. It is further agreed that the clauses shall not be modified, except to identify the sub-consultant who will be subject to the provisions.

34. FEDERAL CHANGES 49 C.F.R. Part 18

Consultant shall, at all times, comply with all applicable FTA regulations, policies, procedures, and directives including, without limitation, those listed directly or by reference in the Agreement (Form FTA MA (18) dated October 2011) between Consultant and FTA, as they may be amended or promulgated from time to time during the term of this Agreement. Consultant's failure to so comply shall constitute a material breach of this Agreement.

35. INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS
FTA Circular 4220.1F

Applicability: *The incorporation of FTA terms applies to all contracts.*

The preceding provisions include, in part, certain Standard Terms and Conditions required by DOT, whether or not expressly set forth in the preceding contract provisions. All contractual provisions required by DOT, as set forth in FTA Circular 4220.1F, are hereby incorporated by reference. Anything to the contrary herein notwithstanding, all FTA

to comply with the terms of the privacy Act may result in termination of the underlying contract.

- b. The Consultant also agrees to include these requirements in each sub-contract to administer any system of records on behalf of the Federal Government financed in whole or in part with Federal assistance provided by FTA.

39. MISCELLANEOUS TERMS REQUIRED BY WYOMING DEPARTMENT OF TRANSPORTATION

a. Special Provisions

- (i) Conflict of Interest. The subrecipient must disclose in writing any potential conflict of interest to WYDOT including financial or other personal interests.
- (ii) Mandatory Disclosures. The subrecipient must disclose, in a timely manner, in writing to WYDOT all violations of Federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this award. Failure to make required disclosures can result in remedies for noncompliance including suspension or debarment.

b. General Provisions

- (i) Amendments. Either party may request changes in this Agreement. Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by and between the parties to this Agreement shall be incorporated by written instrument and signed by all parties to this Agreement.
- (ii) Assumption of Risk. The City shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to its failure to comply with state or federal requirements. WYDOT will notify the City of any state or federal determination of noncompliance.
- (iii) Availability of Funds. Each payment obligation of WYDOT is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services performed by the City, this Agreement may be terminated by WYDOT at the end of the period for which the funds are available. WYDOT will notify the City at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to WYDOT in the event this provision is exercised, and WYDOT will not be obligated or liable for any future payments due or for any damages as a result of termination under this section. This provision shall not be construed to permit WYDOT to

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

Cheyenne Metropolitan Planning Organization
2101 O'Neil Avenue
Cheyenne, WY 82001

By: 
Marian J. Orr, Mayor
MPO Policy Committee Chairman

Date: _____

City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

By: 
~~Marian J. Orr, Mayor~~
Dr. Mark D. Rinne, Acting Mayor

Date: 09-30-2020

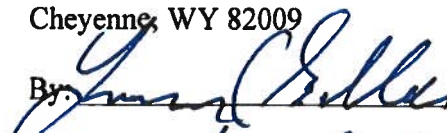
(SEAL)

Attest:


Kristina F. Jones, City Clerk

Consultant

Summit Engineering
5907 Townsend Place
Cheyenne, WY 82009

By: 
Print Name: Larry R. Gallagher

Address: 5907 Townsend Pl 82009

Date: 10-14-20

Exhibit A
Scope of Work
for
EAST PARK GREENWAY AND DRAINAGE PLAN AT UPRR

SCOPE OF WORK – This scope of work outlined below summarizes the proposed scope from Summit Engineering dated August 25, 2020. The Summit Engineering written proposal and this following scope outline constitutes the entire scope of work for this Agreement.

TASK 1 – KICK-OFF, PROJECT ADMINISTRATION, AND MEETINGS

Summit Engineering will conduct a kick-off meeting to gain a better understanding of the project goals and expected outcome. Summit Engineering will conduct monthly project meetings and Steering Committee Meetings. Summit Engineering will provide the MPO with agendas and meeting notes/minutes for all meetings. Summit Engineering will meet with various project stakeholders including the Laramie County Conservation District (LCCD), Mary Winkler, and Cheyenne Parks and Recreation Department as necessary throughout the project.

Deliverables - Meeting agendas and minutes

SUBCONSULTANT TASKS

- **Martin-Martin:** Structural investigation of the existing masonry culvert to determine the structural integrity for use as a Greenway underpass.
 - **Deliverables** – Structural investigation report and cost estimate for necessary repairs.
- **Lithos Engineering:** Recommendations for best tunneling practices including sizes of potential borings thru the UPRR Embankment in coordination with GLM Design Group for sizes and locations. Lithos will provide a concise tunneling feasibility memorandum specifically discussing installation methods, risks and limitations, construction constraints, and layout considerations.
 - **Deliverables** – Tunnel feasibility memorandum and engineer's estimate of probable construction cost for proposed tunnel crossing(s).
- **360 Rail Services:** Coordination and contact with the UPRR to introduce the project to them. A 10% design plan will be given to the UPRR to show use of existing masonry arch structure as the Greenway underpass and additional borings thru the UPRR embankment to convey stormwater. Included in the UPRR submittal will be a description of the existing hydraulics and the proposal for a berm to remove stormwater from being stored against their embankment. The goal of this task is to have written correspondence from the UPRR indicating that they view this project favorably for future construction.
 - **Deliverables** – Correspondence log with UPRR.
- **GLM Design Group:** Recommendations for potential project funding of future construction project.
 - **Deliverables** – Written report identifying funding sources and required next steps to secure funding.

EXHIBIT B

**Attached to Professional Services Agreement between the City of Cheyenne,
Wyoming, and Summit Engineering for Planning and Engineering Services in
Support of the East Park Greenway Underpass and Drainage Plan at UPRR**

EXHIBIT C

**Attached to Professional Services Agreement between the City of Cheyenne,
Wyoming, and Summit Engineering for Planning and Engineering Services in
Support of the East Park Greenway Underpass and Drainage Plan at UPRR**